

Employee Data Privacy Policy

Effective Date: Immediately

Policy Owner: Legal & People Operations

Approved By: Executive Leadership Team

Applies To: All Employees, Contractors, and Temporary Workers

Review Cadence: Annual or as required by law

Confidential – Internal Use Only

Purpose

MakeWorkInc is committed to processing employee personal data responsibly, securely, and in compliance with applicable data protection laws.

This policy explains:

- What employee personal data the company collects
- How and why it is used
- Who may access it
- How it is protected
- Employee rights under applicable privacy laws

This policy applies to personal data processed in the context of employment or engagement with MakeWorkInc.

Scope

This policy applies to:

- Job applicants
- Current employees
- Former employees
- Contractors and contingent workers

This policy covers personal data processed globally, subject to local legal requirements. Where local law provides additional rights or protections, the company will comply with those requirements.

Definitions

Personal Data: Any information that identifies or relates to an identifiable individual.

Sensitive Personal Data (where applicable under law): Data such as government identifiers, financial account information, health information, biometric data, or other categories defined by applicable law.

Processing: Any operation performed on personal data, including collection, storage, use, disclosure, or deletion.

Categories of Data Collected

MakeWorkInc may collect and process the following categories of personal data:

Identification Data

- Name
- Home address
- Phone number
- Email address
- Date of birth
- Government-issued identifiers (as required by law)

Employment-Related Information

- Resume and application materials
- Employment history
- Compensation and payroll data
- Performance evaluations
- Disciplinary records
- Promotion history

Benefits and Financial Data

- Bank account information
- Tax withholding information
- Benefit enrollment data
- Dependent information (where applicable)

IT and Usage Data

- Company email and communication metadata
- System login activity
- Device usage logs
- Security logs
- Access records

Employees should have no expectation of privacy in company-owned systems, subject to applicable law.

Health and Leave Information

- Medical certifications
- Leave documentation
- Workplace accommodation information

Such data is handled with elevated confidentiality safeguards.

Purposes of Processing

Personal data is processed for legitimate business purposes, including:

- Recruiting and hiring
- Payroll administration
- Benefits administration
- Performance management
- Workforce planning
- Compliance with legal obligations
- IT security and fraud prevention
- Internal investigations
- Business continuity planning

Data will not be processed for purposes incompatible with these objectives without appropriate notice.

Legal Bases for Processing (Where Applicable)

Where required by law (e.g., GDPR), processing is based on:

- Performance of an employment contract
- Compliance with legal obligations
- Legitimate business interests
- Consent (where required and appropriate)

Consent is generally not relied upon where there is an imbalance of power in the employment relationship unless legally mandated.

Data Sharing

Personal data may be shared with:

- Payroll providers
- Benefits administrators
- Background check vendors
- IT service providers
- Legal counsel
- Government authorities (where legally required)

All vendors handling employee data must be subject to appropriate confidentiality and data protection agreements.

Data will not be sold.

International Data Transfers

Where employee data is transferred across borders, MakeWorkInc will implement appropriate safeguards, which may include:

- Standard contractual clauses
- Data processing agreements
- Approved transfer mechanisms under applicable law

Cross-border transfers will be conducted in compliance with local regulatory requirements.

Data Security

MakeWorkInc maintains administrative, technical, and physical safeguards appropriate to the sensitivity of the data, including:

- Access controls based on role
- Multi-factor authentication
- Encryption of devices and systems
- Vendor due diligence
- Incident response protocols

Employees are required to comply with all Information Security policies.

Data Retention

Personal data will be retained only as long as necessary to:

- Fulfill the purposes outlined in this policy
- Comply with legal, tax, or regulatory obligations
- Defend against legal claims

Retention periods are governed by the company's Records Retention Policy.

Upon expiration of the retention period, data will be securely deleted or anonymized.

Employee Rights

Depending on applicable law, employees may have the right to:

- Access their personal data
- Request correction of inaccurate data
- Request deletion (subject to legal limitations)
- Restrict or object to certain processing
- Receive a copy of their data in portable format

Requests should be submitted to: **privacy@makeworkinc.com** (or designated contact).

The company may require identity verification prior to fulfilling requests.

Monitoring and Workplace Privacy

To protect company assets and ensure compliance, MakeWorkInc may monitor:

- Company email systems
- Network traffic
- System usage
- Access logs
- Security alerts

Monitoring is conducted for legitimate business purposes, including:

- Data security
- Fraud prevention

- Policy enforcement
- Regulatory compliance

Monitoring practices will comply with applicable law.

Data Breach Notification

In the event of a data breach involving employee personal data, the company will:

- Investigate promptly
- Contain and remediate the issue
- Provide notice where legally required
- Coordinate with legal counsel and regulators as appropriate

Employees must immediately report suspected data incidents to IT Security.

Responsibilities

People Operations

- Ensures compliant data handling in HR systems
- Coordinates privacy requests

IT & Security

- Implements technical safeguards
- Manages incident response

Managers

- Limit access to employee data to legitimate business needs

Employees

- Safeguard personal data accessed during work
- Report suspected misuse

Non-Retaliation

Employees who raise concerns regarding data privacy or submit lawful privacy requests will not be subject to retaliation.

Policy Changes

MakeWorkInc reserves the right to amend this policy at any time to reflect:

- Changes in law
- Regulatory guidance
- Business operations
- Technology infrastructure

Employees will be notified of material changes where required.

